

Prevention of Sexual Harassment (POSH) Policy

NovaTech Industries Legal & HR Compliance Dept. | Document V2.0

1. Objective and Commitment

NovaTech Industries is committed to providing a safe, secure, and congenial work environment for all employees, free from sexual harassment. This policy is formulated in strict accordance with the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013, and equivalent global anti-harassment statutes. We maintain a zero-tolerance approach toward any form of sexual harassment, believing that every employee has the right to work with dignity.

2. Scope and Applicability

This policy applies to all employees across the organization, irrespective of their gender. This includes full-time employees, part-time workers, trainees, interns, consultants, and contract staff working across all NovaTech offices, branches, and client locations. The policy also extends to the "extended workplace," which covers incidents occurring during company-organized events, offsites, team dinners, online virtual meetings, and work-related travel.

3. Definition of Sexual Harassment

Sexual harassment includes any one or more of the following unwelcome acts or behavior (whether directly or by implication):

- Physical contact and advances:** Unwanted touching, groping, or cornering.
- Quid Pro Quo:** A demand or request for sexual favors in exchange for employment benefits (e.g., promotion, pay raise, or threat of termination).
- Sexually colored remarks:** Unwelcome comments about a person's body, clothing, or sexual life.
- Showing pornography:** Displaying sexually explicit images, videos, or objects in the workplace, including via email or Slack.

5. **Hostile Work Environment:** Any other unwelcome physical, verbal, or non-verbal conduct of a sexual nature that creates an intimidating, hostile, or offensive working environment.

4. Internal Complaints Committee (ICC)

NovaTech has established a dedicated Internal Complaints Committee (ICC) to address and redress grievances. The ICC is constituted as follows:

- **Presiding Officer:** A senior-level female employee nominated by the Board.
- **Internal Members:** Two or more employees committed to the cause of women or experienced in social/legal work.
- **External Member:** An independent representative from an NGO or legal body familiar with POSH matters to ensure unbiased proceedings.

5. Detailed Redressal Process

1. **Filing a Complaint:** An aggrieved individual must submit a written complaint to the ICC (via email to icc@novatech.local) within 90 days of the incident. In case of a series of incidents, within 90 days of the last incident.
2. **Interim Relief:** During the pendency of the inquiry, the ICC may recommend interim measures, such as transferring the aggrieved woman or the respondent to another department, or granting leave to the aggrieved woman up to three months.
3. **Conciliation (Optional):** The ICC may, at the explicit written request of the aggrieved, take steps to settle the matter through conciliation. No monetary settlement can be the basis of conciliation. If conciliation fails or terms are breached, the formal inquiry resumes.
4. **Formal Inquiry:** The ICC will conduct a formal, documented inquiry, giving both parties an opportunity to be heard. Cross-examination of witnesses is permitted under ICC supervision. The inquiry must be completed within 90 days.
5. **Action and Implementation:** Within 10 days of completing the inquiry, the ICC issues a report. If the allegations are proven, the ICC recommends disciplinary action to management, which may include a written apology, mandatory counseling, withholding promotions/increments, suspension, or termination. Management must act on the recommendation within 60 days.

6. False or Malicious Complaints

If the ICC concludes that the allegation was made with malicious intent or that forged/misleading documents were produced, the complainant will face severe disciplinary action. However, mere inability to substantiate a complaint or provide adequate proof does not attract action against the complainant.

7. Third-Party Harassment

Where sexual harassment occurs as a result of an act by a third party (e.g., a vendor, client, or visitor), the company will take all necessary and reasonable steps to assist the affected employee in terms of support and preventive action.

8. Confidentiality

The identity of the complainant, respondent, witnesses, and all proceedings of the ICC shall be kept strictly confidential in accordance with the law. Any breach of confidentiality will result in immediate disciplinary action, including a financial penalty.